

24STCV16201 24STCV16201

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-08-18

Motion: PLAINTIFF'S REQUEST FOR DEFAULT JUDGMENT

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Case Number: 24STCV16201 Hearing Date: August 18, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

CRYSTAL

RIZO,

Plaintiff,

vs.

JUAN G. GARCIA, and DOES 1 through 10 inclusive,

Defendants.

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CASE

NO.: 24STCV16201

[TENTATIVE] ORDER RE: PLAINTIFF'S
REQUEST FOR DEFAULT JUDGMENT

Dept. 733

8:30 a.m.

August 18, 2026

I.

INTRODUCTION

This case arises
from the alleged wrongful eviction of Plaintiff Crystal Rizo ("Plaintiff").

On June 28, 2024,
Plaintiff initiated this action against Defendant Juan G. Garcia ("Defendant").

On May 8, 2025,
Plaintiff filed a first amended complaint ("FAC"), alleging causes of action
for (1) Wrongful Eviction; (2) Trespass; (3) Breach of Covenant of Quiet
Enjoyment; (4) Intentional Infliction of Emotional Distress; (5) Conversion;
(6) Negligent Infliction of Emotional Distress, and (7) Negligence.

Defendant failed
to file an answer to the FAC, and thus, the Court Clerk entered default against
Defendant on May 11, 2026.

On May 27, 2026,
Plaintiff filed the instant Request for Default Judgment.

II.

LEGAL STANDARD

Code of Civil

Procedure section 585 permits entry of a judgment after a Defendant has failed to timely answer after being properly served. A party seeking judgment on the default by the Court must file a Request for Court Judgment, and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) a proposed form of judgment; (6) a dismissal of all parties against whom judgment is not sought; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court Rule 3.1800.)

III.

DISCUSSION

SUBMITTED: CRC

3.1800

1.

Use
of JC Form CIV-100 Yes

2.

Dismissal or judgment of non-parties to the judgment Yes

3.

Declaration
of non-military status for each defendant Yes

4.

Summary

of the case Yes

5.

585(d)

declarations/admissible evidence in support Yes

6.

Exhibits (as necessary) Yes

7.

Interest computation (as necessary) N/A

8.

Cost memorandum N/A

9.

Request for attorney fees (Local Rule 3.214) Yes

Damages Summary:

Damages

\$ 263,625.00

Interest

\$ 0

Attorneys' fees

\$ 39,635.00

Costs

\$ 0

TOTAL

\$ 303,260.00

Other relief requested

Plaintiff seeks a default judgment in the amount of \$303,260.00, which includes \$263,625.00 in damages and \$39,635.00 in attorney fees.

For any damages claimed, "Plaintiffs in a default judgment proceeding must prove they are entitled to the damages claimed." [Citation]." (Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 288.) "[T]he plaintiff must affirmatively establish his entitlement to the specific judgment requested." (Id. at p. 287; Barragan v. Banco BCH (1986) 188 Cal.App.3d 283, 302 ["Plaintiffs in a default judgment proceeding must prove they are entitled to the damages claimed."].)

Here, Plaintiff declares that in 2014, her mother and defendant were married. (Rizo Decl., ¶ 2.) They both contributed and purchased the property located at 6715 6th Avenue, Los Angeles, CA 90043. (Ibid.) Plaintiff then moved into the residence. (Ibid.) Plaintiff's mother and Defendant began having marital problems, they both filed for divorce and Defendant moved out of the residence. (Id. ¶ 3.) Plaintiff continued living with her mother and her children at the residence. (Ibid.) The divorce was finalized and Plaintiff's mother received the residence as part of the settlement. (Ibid.) Plaintiff continued living at the residence while her mother was in the process of having a Judge sign the final judgment when Plaintiff's mother succumbed to cancer on or about June 17, 2024, (Ibid.)

That same day, Defendant came to the residence and told Plaintiff to get out of the house" and that he was going to change the locks. (Id. ¶ 4.) According to Plaintiff, Defendant has since sold the house with all Plaintiff's belongings. (Ibid.)

The Court finds that Plaintiff has not established entitlement to damages premised on her causes of action for Wrongful Eviction and Breach of Covenant of Quiet Enjoyment, as she has not provided any evidence that Defendant is the rightful owner of the premises and that there was a landlord-tenant relationship between Plaintiff and Defendant. (Nativi v. Deutsche Bank Nat'l Tr. Co. (2014) 223

Cal.App.4th 261, 294 ["A tenant who is wrongfully evicted by his landlord before the expiration of the lease term may maintain a wrongful eviction action for tort damages and punitive damages[.]" (emphasis added); id. at pp. 291-292 ["[i]t has long been the rule that in the absence of language to the contrary, every lease contains an implied covenant of quiet enjoyment. . . . [the covenant of quiet enjoyment] insulates the tenant against any act or omission on the part of the landlord, or anyone claiming under him, which interferes with a tenant's right to use and enjoy the premises for the purposes contemplated by the tenancy."].)

Plaintiff also has not established entitlement to damages premised on her cause of action for Trespass, as she has not provided any evidence that she is the rightful owner of the premises. (Ralphs Grocery Co. v. Victory Consultants, Inc. (2017) 17 Cal.App.5th 245, 262 ["The elements of trespass are: (1) the plaintiff's ownership or control of the property; (2) the defendant's intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant's conduct was a substantial factor in causing the harm."]) (emphasis added).)

As for Plaintiff's cause of action for conversion, the Court must consider the evidence and render judgment in Plaintiff's favor for the amount justified by the evidence, but not exceeding the amount stated in the complaint. (Code Civ. Proc., § 585(b); Dhawan v. Biring (2015) 241 Cal.App.4th 963, 968 ["Section 580, subdivision (a), limits a trial court's jurisdiction to grant relief on a default judgment to the amount stated in the complaint."].) Here, Plaintiff declares that she suffered losses totaling \$84,975.00 for Plaintiff's personal property that Defendant "seized." (Rizo Decl., ¶ 5.) This amount was not stated in the FAC, as Plaintiff solely sought damages "for the value of the property converted." (FAC Prayer for Relief ¶ 25.) This does not satisfy due process requirements. (See Becker v. S.P.V. Construction Co. (1980) 27 Cal.3d 489, 493–494 [noting that section 580's requirements were "designed to insure fundamental fairness" that would be "undermined if the door were opened to speculation" the court held "a prayer for damages according to proof passes muster under section 580 only if a specific amount of damages is alleged in the body of the complaint. [Citation.]"].) Plaintiff's service of a statement of damages does not resolve this defect. (Dhawan, supra, 241 Cal.App.4th at p. 968 ["The 'strict construction' of section 580 as articulated by the Supreme Court has led the Courts of Appeal to consistently reject the argument that a statement of damages can satisfy the

section's notice requirements in cases that do not involve personal injury or wrongful death."].)

As for attorney's fees, Plaintiff requests \$39,635.00 in fees. (Udeozor Decl., ¶ 3.) Plaintiff has not provided a statute or contract upon which she can obtain attorney fees. The amount of fees requested is also incorrectly calculated from the fee schedule found in the Local Rules rule 3.214(a).

IV.

CONCLUSION

Plaintiff's

Request for Default Judgment is DENIED. Plaintiff is free to file an amended default judgment package consistent with this opinion.

Dated this 18th
day of August 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court